

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

CIVIL REVISION NO. 3577 OF 2015

In the matter of:

An application under Section 115(1) of the Code of Civil
Procedure.

AND

In the matter of:

Md. Alamgir Hossain

.... Petitioner

-Versus-

The Bangladesh House Building Finance Corporation,
Khulna and others.

....Opposite-parties

Mr. Md. Aminul Ehsan, Advocate

... For the petitioner

None appeared

....For the opposite parties

Heard and Judgment on 08.01.2024

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Mohi Uddin Shamim

Md. Mozibur Rahman Miah, J:

At the instance of the petitioner in Miscellaneous Case No. 10 of
2015 filed under Order 21 Rule 90 of the Code of Civil Procedure and that
of the judgment debtor no. 1 in Title Execution Case No. 08 of 2006, this

rule was issued calling upon the opposite-parties to show cause as to why the order no. 98 dated 16.06.2015 passed by the learned District Judge, Khulna in the said Miscellaneous case issuing writ of possession that was earlier recalled on 02.03.2015 vide order no. 92 should not be set aside set aside and/or such other or further order or orders be passed as to this court may seem fit and proper.

At the time of issuance of the rule all further proceedings of the said execution case no. 08 of 2006 was stayed till 1(one) week after the vacation slated to be started at that time. However, record shows that, no further extension was taken.

The short facts leading to issuance of the rule are:

The present opposite party no. 1 as petitioner filed a Miscellaneous case being Miscellaneous Case No. 15 of 2000 under Article 27 of Bangladesh House Building Finance Corporation Order 1973 (Presidential Order No. 7 of 1973) for realization of default loan amounting to taka 18,11,641.04 against the present petitioner and opposite party nos. 2-7 seeking following reliefs:

(ক) দরখাস্তকারীর দরখাস্তের বর্ণনা মোতাবেক প্রতিপক্ষের বিরুদ্ধে দরখাস্ত এ দাবীকৃত সুদ আসল সহ ১৮,১১,৬৪৯.০৪ টাকা বাবদ এবং ইং ০১.১০.৯৯ তারিখ হইতে টাকা আদায়না হওয়া পর্যন্ত সংস্থার বর্ণিত মতে ১০^১/_২ হারে সুদ সহ সমুদয় পাওনা আদায় বাবদ ডিক্রী দিতে মর্জি হয়।

(খ) আদালত কর্তৃক নির্ধারিত সময়ের মধ্যে ডিক্রী মোতাবেক প্রতিপক্ষ দরখাস্তকারীর পাওনা টাকা পরিশোধে ব্যর্থ হইলে তপশীল বর্ণিত বন্ধকী জমি ও অদুপরিস্থিত ইमारতাদি

আদালতের মাধ্যমে বিক্রয় পূর্বক আদায় করত সুদসহ সমুদয় পাওনা
আদায়ে ডিক্রি প্রদানে মর্জি হয়।

(গ) বন্ধকী সম্পত্তি ও অদুপরিস্থিত ইমারতাদি বিক্রয়ের
মাধ্যমে দরখাস্তকারীর সমুদয় প্রাপ্য পরিশোধ না হইলে প্রতিপক্ষের
বিরুদ্ধে ব্যক্তিগত ডিক্রি প্রদানে মর্জি হয়।

(ঘ) অত্র মোকদ্দমা বিচারাধীন থাকা অবস্থায় প্রতিপক্ষের
বিরুদ্ধে তপশীল বর্ণিত সম্পত্তি বাবদ অর্তবর্তীকালীন ক্রোকের আদেশ
দিতে মর্জি হয়।

(ঙ) মোকদ্দমার যাবতীয় খরচা বাবদ প্রতিপক্ষের বিরুদ্ধে
ডিক্রী দিতে মর্জি হয়।

(চ) আদালতের ন্যায় বিচারে দরখাস্তকারী আর যে যে
প্রতিকার পাইতে হকদার তাহার ডিক্রি দিতে মর্জি হয়।

It has mainly been stated in the petition of the said Miscellaneous case that, in order to erect a building, the opposite parties of the said Miscellaneous case availed a loan facilities amounting to taka 7,64,000/- by mortgaging the property scheduled in the Miscellaneous case. Since the borrowers opposite parties did not come forward to repay the said loan as per terms and condition laid out in mortgaged deed the present opposite party no. 1, then filed the said miscellaneous case. However, the opposite parties to the Miscellaneous case did not contest the Miscellaneous case it was thus decreed ex parte on 15.09.2005 for the claimed amount. After decreeing the said case, the opposite parties have also failed to repay the decretal amount for which the opposite party no. 1 as a decree holder filed an execution case being Title Execution Case No. 8 of 2006 against the opposite party nos. 2-7 for an amount of taka 23,93,499.40. However, on

subsequent amendment, it was raised at taka 26,25,987.89. In order to realize the said decretal dues, from the said opposite parties, the property mortgaged with the opposite party no. 1 was then put on auction sale and vide order dated 29.01.2008 the opposite party no. 1 purchased the same. In order to take possession of the said auction purchased property, the learned judge of the executing court vide order no. 89 dated 08.02.2015 issued a writ of warrant. However, subsequently on 01.03.2015 the judgment debtor no. 1 (son of judgment debtor no. 1, Sheikh Amir Hossain) filed an application under Order 21 Rule 19 read with section 151 of the Code of Civil Procedure to set aside the auction claiming some irregularities in the process of the auction sale while accepting bid in favour of the decree holder, bank. The said application then gave rise to Miscellaneous case no. 10 of 2015. However, when the said Miscellaneous case was proceeding, the learned judge again issued a writ of possession at the instance of the decree holder vis-a-vis auction purchaser. It is at that stage, the judgment debtor no. 1 as petitioner came before this court and obtained the instant rule and order of stay.

Mr. Md. Aminul Ehsan, the learned counsel appearing for the petitioner upon taking us to the revisional application and the orders so have been annexed therewith at the very outset submits that, since the Miscellaneous case was initiated and it was pending so if the writ of possession was issued and possession is handed over then the continuation and disposal of the said case will become infructuous.

The learned counsel by referring to the grounds in particular, ground no. 1 and 3 also contends that, if the Miscellaneous case is ultimately

disposed of in favour of the petitioner then there would have no justification to proceed with the title execution case but the learned judge of the executing court without considering the said aspect issued writ of possession even though without assigning any reason and taking into notice that on earlier occasion vide order no. 92 dated 02.03.2015 the said writ of possession was called off. With those very two legal grounds the learned counsel finally prays for making the rule absolute.

None appeared for the opposite parties to oppose the rule.

We have considered the submission so advanced by the learned counsel for the petitioner and perused the revisional application in particular, the grounds couched in the revisional application especially ground no. 3. On going through the order through which auction was purchased by the decree holder opposite party no. 1 vide order no. 23 dated 29.01.2008 (reproduced in the revisional application at page-5) we find that, on the date of re-auction the decree holder as auction purchaser purchased the mortgaged property where the claim against the opposite party nos. 2-7 was taka 26,25,987/-. But since the judgment debtor filed a Miscellaneous case under order 21 Rule 90 of the Code of Civil Procedure for setting aside the auction claiming various irregularities so until and unless his claim is adjudicated there has been no scope to implement the said auction by issuing writ of warrant to hand over possession and if it is done certainly the filing and proceeding with the Miscellaneous case would become pointless. Furthermore, since vide earlier order bearing no. 92 dated 02.03.2015 the writ of possession was recalled finding the Miscellaneous case to have filed, so there has been no scope to re-issue

writ of possession on the basis of application filed by the decree holder. Then again, the petitioner has rightly asserted that, if the Miscellaneous case is ultimately disposed of in favour the petitioner in that event, the auction will be set aside having no reason to proceed with the execution case any more. We find substance in the said argument.

Given the above facts and circumstances and the legal proposition so involved we are inclined to set aside the impugned order.

Accordingly, the rule is made absolute however without any order as to cost.

The impugned judgment and order no. 98 dated 16.06.2015 is here by set aside.

However, the learned District Judge, Khulan is here by directed to dispose of the Miscellaneous case as expeditiously as possible preferably within a period of 2(two) months from the date of receipt of the copy of this order.

The order of stay grated at the time of issuance of the instant rule will continue till disposal of the Miscellaneous case.

Let a copy of this order be communicated to the court concerned forthwith.

Mohi Uddin Shamim, J:

I agree.